

Tamil Nadu District Panchayats (Procedure In Regard To Transaction of Business, Conduct of Meeting and Subject For Discussion At The Meeting) Rules, 1997

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Rule

TAMIL-NADU-DISTRICT-PANCHAYATS-PROCEDURE-IN-REGARD-TO-TRANSACTION-OF-BUSINESS-CONDUCT-OF-MEETING-AND-SUBJECT-FOR-DISCUSSION-AT-THE-MEETING-RULES-1997 of 1997

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Tamil Nadu District Panchayats (Procedure In Regard To Transaction of Business, Conduct of Meeting and Subject For Discussion At The Meeting) Rules, 1997

Published vide Notification No. G.O. Ms. No. 175, Rural Development (C-1), Dated the 9th June 1997 - No. SRO

A-70/97

G.O. Ms. No. 175. - In exercise of the powers conferred by clauses (v) and (vii) of sub-section (2) of section 242 of the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994), the Governor of Tamil Nadu hereby makes the following Rules: -

1.

Short title.

- These rules may be called the Tamil Nadu District Panchayats (Procedure in regard to transaction of business, conduct of meeting and subject for discussion at the meeting) Rules, 1997.

2.

Definition.

- In these Rules unless the context otherwise requires, -

(1)

"Act" means the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994); and

(2)

All other words and expressions used in these Rules, but not defined therein shall have the meanings respectively assigned to them in the Act.

3.

Procedure in regard to transaction of business and conduct of meeting of District Panchayat.

- The District Panchayat shall meet at the place specified by the Chairman of the District Panchayat (hereinafter referred to as "the Chairman") upon such days and at such times as it may be arranged and also at other times as often as a meeting shall be called by the Chairman:

Provided that not more than sixty days shall elapse between one meeting of the District Panchayat and the another meeting.

4.

(1)

No meeting shall be held unless notice of the day and time when the meeting is to be held and of the business to be transacted thereat has been given at least ten clear days before the day of the meeting.

(2)

In cases of urgency, the Chairman may convene a business to be transacted thereat has been given at least rule (1).

(3)

The agenda for the meeting shall be approved by the Chairman. Any member who wishes to have any subject included in the agenda or move any resolution shall intimate his intention by notice in writing to the Chairman and such notice shall contain a copy of the subject or resolution which he wished to include or move. Subjects or resolutions contained in notices received twenty clear days before the date of meeting shall ordinarily be considered for inclusion in the agenda for that meeting. The Chairman shall decide on the admissibility of the subject or resolution and shall disallow any subject or resolution, if it in his opinion contravene the provisions of Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994) or the Rules made thereunder and his decision thereon shall be final. Any subject or resolution admitted by the Chairman shall be included in the notice for the meeting. On any subject or resolution included in the agenda, the Chairman shall have the right of recording his views in a notice and such note shall be circulated to the members or placed before the District Panchayats at the time of the consideration of such subject or resolution by the District Panchayat:

Provided that a supplemental agenda may be brought by the Chairman before District Panchayat for consideration at ordinary meetings with the consent of the majority of members present at the meeting who are entitled to vote.

5.

The Chairman of the District Panchayat or, in his absence, the Vice-Chairman shall preside over the meeting of the District Panchayat. In the absence of both the Chairman and Vice-Chairman, a member chosen by the members present at the meeting shall preside over the meeting.

6.

No business shall be transacted at a meeting unless there be present at least one-third of the number of members than on the District Panchayat.

7.

If within half an hour after the time appointed for a meeting, a quorum is not present, the meeting shall stand adjourned.

8.

All matters at a meeting of the District Panchayat shall be decided by a majority of votes of members present and voting. In the case of equality of votes, the Chairman of the District Panchayat, or in his absence, the person presiding, will have a second or casting vote.

9.

The minutes of the proceedings of each meeting of the District Panchayat shall be drawn up and entered in a Minutes Book to be kept for that purpose and shall be signed by the Chairman or in his absence by the member presiding thereat. A copy of the proceedings of the meeting containing a fair summary of views expressed by the members present shall also be drawn up and a copy of the same published on the notice board of the office of the District Panchayat.

10.

The Chief Executive Officer or any person authorised by him in this behalf shall have the custody of the proceedings and records of the District Panchayat and may grant copies of any such proceedings and records on payment of such fees as the Government may by order fix, from time to time. Copies shall be certified by the Chairman or any officer authorised by him in this behalf.

11.

Subject for discussion in the District Panchayat.

(1)

In respect of District Panchayat, it will not be possible to discuss all matters relating to all executive departments of the Government at every meeting. At the same time, it has to be ensured that not too much time is allowed to elapse between two sessions at which the subjects relating to any particular department are brought up for discussion at the District Panchayat. With reference to these considerations, the subjects to be brought up before the District Panchayat can be grouped under the following three heads:-

(i)

Production programmes (which will include all programmes relating to agriculture, animal husbandry, industries and connected matters like irrigation, electricity, co-operatives, etc.);

(ii)

Welfare services programmes (which will include social welfare, health, education, noon-meal centres, Adi-Dravida and Backward Class Welfare and all works other than those connected with production);

(iii)

Development programmes (which will include road, water-supply, infrastructure buildings and other development programmes).

(2)

It should be possible to earmark each meeting of the District Panchayat for the discussion of one set of programme as illustrated below: -

I Session Discussion on Production Programmes.

II Session Discussion on Welfare Programmes.

III Session Discussion on Development Programmes and so on.

(3)

All the district level officers, whose subjects are being discussed at the meeting of District Panchayat shall attend the meeting and assist in the discussions relating to known subjects. There shall be no absentees for the District Panchayat Council meeting except with the prior permission of the Chairman.

Note 1. - The term "district Level Officer" shall refer to the senior-most officer of the Government department whose jurisdiction is co-terminus with the district:

Provided that when there are two or more officers of equal ranking of a particular department, all of such will attend the District Panchayat Council meeting.

Note 2. - The word "department" will include autonomous bodies like Tamil Nadu Electricity Board and Tamil Nadu Water Supply and Drainage Board, but shall not include Public Sector Undertakings.

Note 3. - (i) The Chief Executive Officer of the District Panchayat shall call for reports from the departments on the progress of implementation of schemes and programmes at the district level including details regarding budgets and

allocation and such other details as may be necessary to facilitate a detailed discussion on the activities of that department.

(ii)

On receipt of the requisition from the Chief Executive Officer, the district level officer or officers shall send to the Chief Executive Officer in the manner and format required the details called for to facilitate detailed discussion of the activities of that department.

(iii)

The Chief Executive Officer should submit to the Government and Director of Rural Development-a copy of the proceedings of each meeting immediately after the meeting is over. The returns thus secured will be consolidated for the whole State and placed before the Cabinet, if necessary.

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